

24NNCV03161 24NNCV03161

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Case Number: 24NNCV03161 Hearing Date: June 24, 2026 Dept: E

Defendant, Mazda Motor of

America, Inc., dba Mazda North American Operations (MNAO), moves for summary judgment in its favor on all causes of action in Plaintiff's Complaint. [The Complaint consists of one cause of action for Violation of Song-Beverly Act – Breach of Express Warranty.

Defendant moves for summary

judgment, or in the alternative, summary adjudication, of the following issues:

1. Defendant is entitled to

judgment as a matter of law on Plaintiff's First Cause of Action, for Violation of the Song-Beverly Act - Breach of Express Warranty because Plaintiff cannot establish a failure to repurchase the vehicle when it is undisputed that MNAO offered to repurchase the vehicle.

2. Defendant is entitled to

judgment as a matter of law on Plaintiff's First Cause of Action, for Violation of the Song-Beverly Act - Breach of Express Warranty because the subject vehicle was purchased used and under Rodriguez v. FCA US, LLC, (2024) 17 Cal.5th 189, the Song-Beverly Act does not apply to used vehicles.

3. Defendant is entitled to

judgment as a matter of law on Plaintiff's Prayer for Civil Penalties because there was no willful failure to comply with obligations under the Song-Beverly Act.

(Def. Mot., p. ii.)

The Court finds two of Defendant's arguments unavailing. The arguments that the Court finds unavailing is that: (1) Defendant is entitled to judgment because Plaintiff cannot establish a failure to repurchase the vehicle when it is undisputed that MNAO offered to repurchase the vehicle; and (2) Defendant is entitled to judgment as a matter of law on Plaintiff's Prayer for Civil Penalties because there was no willful failure to comply with obligations under the Song-Beverly Act.

The reasons that the Court finds the two aforementioned arguments unavailing is explained in the Court's 4/24/2026 Minute Order.

The Court is inclined to GRANT Defendant's MSJ on the basis that the subject vehicle was not a "new motor vehicle."

Defendant asserts the following undisputed material facts:

1. On May 15, 2019, Plaintiff Marie Cupo leased the 2019 Mazda 3, new, from Star Mazda with 25 miles on the odometer.
2. The vehicle came with a New Vehicle Limited Warranty (New Car Warranty) issued by MNAO which contained a basic 3 years/36,000-miles and a Powertrain warranty of 5 years/60,000-miles, subject to certain terms and conditions.
3. On May 10, 2022, plaintiff returned the car into Star Mazda towards the conclusion of the lease, with the odometer at 30,045 miles.
4. Later on May 10, 2022, Star Mazda sold the vehicle to plaintiff, used, with 30,045 miles on the odometer.
5. The sales contract explicitly states the vehicle was sold as "Used", and the signed Buyers Guide disclosure indicated the vehicle was sold "as is – no dealer warranty" and that, "the dealer does not provide a warranty for any repairs after sale."

6. Furthermore, the transaction was reported to the DMV as the sale of a used vehicle.

7. The only warranty on the vehicle at the time of purchase was the unexpired New Car Warranty. No additional warranties were issued by the dealer or MNAO when plaintiff purchased the subject vehicle from Star Mazda.

(Def. UMF, # 1-7.)

Out of the 7 UMFs listed above, UMF 2 is the only UMF that went undisputed by Plaintiff.

In opposition, Plaintiff disputed UMFs 1 and 3-7, and Plaintiff objected to UMFs 1 and 3-7.

The Court will hear argument on Plaintiff's objections because Plaintiff does not offer any evidence to dispute UMFs 1 and 3-7.

Based on the language of Civil Code § 1793.22(e)(2), and based on *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, it appears that Defendant's MSJ should be GRANTED.

The Song-Beverly Consumer Warranty Act provides buyers of new motor vehicles with specific remedies when a vehicle turns out to be defective. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 195 citing Civ. Code, § 1791 et seq.)

Under Civil Code § 1793.22(e)(2):

"New motor vehicle" means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. "New motor vehicle" also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or any other legal entity, to which not more than five motor vehicles are registered in this state. "New motor vehicle"

includes the chassis, chassis cab, and that portion of a motor home devoted to its propulsion, but does not include any portion designed, used, or maintained primarily for human habitation, a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty but does not include a motorcycle or a motor vehicle which is not registered under the Vehicle Code because it is to be operated or used exclusively off the highways. A demonstrator is a vehicle assigned by a dealer for the purpose of demonstrating qualities and characteristics common to vehicles of the same or similar model and type.

(Civ. Code, § 1793.22(e)(2).)

Or to phrase it in a more concise manner:

Section 1793.22, subdivision

(e)(2) defines “new motor vehicle” to include a new vehicle “bought or used primarily for personal” purposes as well as “a dealer-owned vehicle and a ‘demonstrator’ or other motor vehicle sold with a manufacturer’s new car warranty.”

(Rodriguez v. FCA US LLC (2024)

17 Cal.5th 189, 196.)

Here, the Court fails to see how Plaintiff’s vehicle is any of the following: (1) a dealer-owned vehicle, (2) a demonstrator, or (3) other motor vehicle sold with a manufacturer’s new car warranty.

In Rodriguez v. FCA US LLC

(2024) 17 Cal.5th 189, the Supreme Court of California concluded that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a “motor vehicle sold with a manufacturer’s new car warranty” under section 1793.22, subdivision (e)(2) ’s definition of “new motor vehicle” unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.)

In Rodriguez,

plaintiffs bought a 2011 Dodge Ram 2500 from Pacific Auto Center, a used car dealer in Fontana, and at the time of sale, the vehicle was about two years old

with 55,444 miles. (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.) The three-year/36,000-mile bumper-to-bumper warranty on the truck had expired, but the five-year/100,000-mile powertrain warranty issued by the vehicle's manufacturer, FCA, remained in effect. (Id.) The powertrain warranty covered the vehicle's powertrain (engine, transmission, and drive system), diesel engine, emissions, and washer bottle, and it also provided a corrosion warranty. (Id.) While the powertrain warranty was still in effect, plaintiffs repeatedly experienced engine problems. (Id.)

In Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, the Supreme Court of California concluded that “a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a “motor vehicle sold with a manufacturer's new car warranty” under section 1793.22, subdivision (e)(2) 's definition of “new motor vehicle” unless the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC (2024) 17 Cal.5th 189, 196.)

Here, it appears that Plaintiff entered a three-year lease term beginning on 5/15/2019 and ending on 5/15/2022. (See Def. Ex. A, p. 1.)

It appears that the three-year lease included a New Vehicle Limited Warranty (36 months or 36,000 miles, whichever comes first) and a Powertrain Limited Warranty (60 months or 60,000 miles, whichever comes first). (See Def. Ex. C, p. 5-6.)

Further, near the end of the three-year lease, it appears that Plaintiff decided to buy the subject vehicle on 5/10/2022 with 30,045 miles on the subject vehicle, and it appears that the “Buyers Guide” contained in Exhibit E indicates that the vehicle was being purchased “As Is – No Dealer Warranty.” (See Def. Ex. E, Buyers Guide.)

In opposition, Plaintiff disputes all of the aforementioned alleged facts, but the Court is unclear as to what Plaintiff is actually disputing.

Plaintiff does not seem to offer any evidence in opposition to dispute the aforementioned alleged facts that Defendant submitted evidence for.

Plaintiff seems to dispute the aforementioned facts because Plaintiff does not want to write "undisputed" in her separate statement.

However, the Court would like to hear argument as to what Plaintiff disputes and objects to with respect to Defendant's UMFs 1-7.

Does Plaintiff dispute that she initially leased the vehicle?

Does Plaintiff dispute that she eventually decided to purchase the vehicle?

The Court does not understand Plaintiff's arguments in opposition as to how her subject vehicle is a "new motor vehicle."

Plaintiff seems to argue that a mere change in the financial arrangement for the acquisition of a car cannot change Plaintiff's right to remedies under the Song-Beverly Act.

The problem the Court has with Plaintiff's argument is that it seems be contrary to the language of Civil Code § 1793.22(e)(2) and the holding in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189.

The instant motor vehicle appears as if it was leased with a manufacturer's new car warranty on 5/15/2019, but almost three years later on 5/10/2022 it appears that Plaintiff decided to purchase the vehicle with 30,045 miles on the vehicle. (See Def. Ex. E.) Further, it appears that when Plaintiff eventually decided to purchase the vehicle, it appears that the purchase did not include a new car warranty. (See Def. Ex E, p. 5 of RISC & Def. Ex. E, Buyers Guide.)

In *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Supreme Court of California concluded that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a "motor vehicle sold with a manufacturer's new car warranty" under section 1793.22, subdivision (e)(2) 's definition of "new motor vehicle" unless

the new car warranty was issued with the sale.” (Rodriguez v. FCA US LLC
(2024) 17 Cal.5th 189, 196.)

Here, Plaintiff’s vehicle
does not appear as if it was sold with a manufacturer’s new car warranty.

The Court fails to see how
the subject vehicle falls within the ambit of “new motor vehicle” as defined by
Civil Code § 1793.22(e)(2).)